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Article 1: **INTUITIONS**

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ARTICLE 1: INTUITION

Introduction¹

Why study or question the reliability of moral intuitions? It is common in both applied ethics courses and textbooks to devote time to studying some of the most influential theories and principles in ethics. Students are often presented with the classical form of each theory along with criticisms of these forms. Students are also typically presented with case studies, real and fictitious, which are intended to further acquaint them with various ethical issues that arise in the discipline or field being studied. To a large extent, this format will be adopted in this book as well.

However, it is worth taking a step back from this format in order to examine how these theories and case studies are evaluated. Often times, in both cases, positions are rejected or accepted on the strength of their *intuitive* plausibility.

This article examines the use of intuitions which are commonly used in both theoretical and applied ethics. Lay people and philosophers alike regularly appeal to intuitions when endorsing or rejecting a given view. Indeed, whether one realizes it or not, one often falls back on intuitive judgments when determining right from wrong. However, both history and contemporary psychological research have shown that intuitions can be seriously flawed.

This article, then, will briefly examine both sides of the debate about the reliability of intuitions. It will be argued that intuitive judgments should be treated with some caution, especially under certain kinds of conditions, but that they should not be abandoned completely.

Section I of this article will clarify what an intuition is (for the purposes of this paper). In section II, two arguments against the reliability of intuitions will be examined. The first argument appeals to two prominent examples in human history in which moral intuitions went wrong (i.e. the “historical-reflective criticism”). This argument is supplemented with contemporary psychological research which appears to undermine the reliability of even strong intuitions. In section III, David Sosa’s defense of the reliability of intuitions will be considered. Finally, in section IV, it will be suggested that intuitive judgments do have a role to play in moral deliberations; albeit a qualified one. Three conditions will be listed under which intuitions should be, it is argued, treated with some suspicion. The survey of arguments for and against the use of intuitions in this article is intended to introduce and sensitize the reader to the potential limitations of intuitions. But this survey should not be treated as a decisive case for or against intuitive judgments.

Before moving into section I, an important caveat is necessary here. With the exception of the historical-reflective criticism below, the arguments for and against the reliability of intuitions discussed in this article apply to intuitions as a type of judgment in general and not only to moral intuitions in particular. However, some might be inclined to argue that moral intuitions are a totally different type of judgment than other intuitions (e.g. engineering intuitions, scientific intuitions, intuitions about non-moral philosophical concepts, etc.). If this is the case then moral intuitions could prove either especially resistant or susceptible to the arguments examined in the pages that follow. In the interest of putting all the cards on the table, it will be assumed, in this article, that moral intuitions are a type or instance of the more general category of judgment known simply as “intuition”. In other words, moral intuitions will be treated as distinct but related to the aforementioned examples of non-moral intuitions. Thus, all of the arguments for and against intuitions below are viewed as being directly applicable to moral intuitions in particular.

Section I: Defining Intuition

The term “intuition” carries different meanings in different contexts. For example, one may hear people talk about a “*woman’s intuition*” where a person is purported to have special insight or knowledge.

A gambler who sticks with a particular slot machine or blackjack table might refer to his anticipation of a payout as an *intuition*. In this case, the intuition is thought of as something more akin to a gut-feeling.

¹ Thanks to Dr. Michael Loui, Professor of Electrical and Computer Engineering, University of Illinois –Urbana/Champaign, for his constructive comments on an earlier draft of this paper.

In a spiritual context, intuitive knowledge might be contrasted with intellectual knowledge; the former being thought of as deliberate but more experiential in nature than the latter. Contemplative and/or meditative approaches to worship can be seen as embodying this kind of intuitive knowledge. But, what is an intuition in the moral sense and what role do intuitive judgments play in moral reasoning?

Defining what an intuitive judgment is in ethics can be difficult. Sometimes such judgments appear to be largely intellectual in character and yet, on other occasions, intuitions seem to manifest at a more instinctive level; especially about issues that tend to evoke intense emotional responses. The latter kinds of intuitions will be passed over in this article. It will later be argued that intuitive judgments accompanied by intense emotions ought to be treated with some suspicion.

In this article an intuition is defined as an insight that just *seems to be true or correct*. Michael DePaul adds that intuitions are not the result of perception, introspection, or explicit inference.² That is, intuitions stem from a faculty of judgment distinct from perception and introspection. And, intuitions are not the result of an explicit reasoning process.³ This additional specificity is important because it fosters a more precise understanding of intuitions, shows their unique source and place in human reasoning, and establishes what will be referred to in this article.

It is easy to find examples of intuitive reasoning in both classical and contemporary ethics (including applied ethics). For example, in evaluating the plausibility of utilitarianism, some authors will point out that this approach mandates, in special cases, that some individuals be treated unjustly to benefit a larger group of people. Many people reject utilitarianism on the strength of this implication – arguing that it just seems wrong to treat some people unjustly even when doing so will promote a greater good.

In engineering ethics courses, students are often repulsed by Ford Motor Company's use of a cost-benefit analysis in the Pinto debacle.⁴ Many believe that human life is impossible to quantify monetarily. Yet, when pressed, many of these people fall back on observations about the priceless value of human life that sound more like truisms than anything else. That is, many people would be hard pressed to explain why human life is invaluable beyond the notion that this just seems to be the case. Numerous examples are available but unnecessary to go into here. Intuitive judgments, as a matter of fact, play an important role in people's day-to-day reasoning about moral ideas, issues, and dilemmas.

This fact notwithstanding, genuine criticisms about the reliability of intuitions have been raised. The more unreliable or limited intuitions are thought to be, the smaller role, if any, it is argued, they should play in moral deliberation and justification.

Section II: Questioning the Reliability of Moral Intuitions

Historical-Reflective Criticisms

One does not need to look very far into human history to find instances where some people's intuitive judgments about how to treat other people have gone awry; horribly so in some cases. What is striking in such cases is not just the content of the judgments themselves (and thus the kinds of actions that these judgments led to), but also the attitude of those who held such flawed views towards the judgments. It is not unwarranted to believe that even those people who committed the most egregious offenses truly

² Depaul, Michael "Intuitions in Moral Inquiry" *The Oxford Handbook of Ethical Theory* ed. David Copp (New York: Oxford, 2005), pg. 595. Depaul draws attention to the fact that this aspect of the definition of intuitions is somewhat negative in nature. In other words, it defines intuition by discussing what it is not. This could very well reflect a legitimate limit on how precise a definition of intuition is possible.

³ Ibid

⁴ For those unfamiliar with this case, in the 1970's Ford Motor Company, in an attempt to remain competitive with companies producing inexpensive fuel efficient cars, debuted the Ford Pinto. Engineers (and managers) at Ford became aware of a critical design flaw in the Pinto involving the gas tank. Pintos had a propensity to catch fire and explode when involved in rear end collisions at relatively low speeds. Faced with the prospect of a potentially costly remedy to the problem, managers at Ford used a cost-benefit analysis to compare the cost of the remedy to the cost of death and injury lawsuits that would result from leaving a seriously flawed car on the market. Their initial judgment was that paying the damages from lawsuits would be cheaper than fixing the problem and, as a result, they left the Pinto on the market as it was. Part of this cost benefit analysis involved assigning a monetary value to the lives that would be lost in the more serious accidents.

believed their position was morally correct; self-evidently so. It just seemed to be the case that their view was the correct one.

In American history there is perhaps no clearer example of intuitions gone wrong than in the treatment of both slaves and Native Americans. No doubt the treatment of both groups stemmed from the complex interaction of economic, social, and psychological factors. Nevertheless, it is uncontroversial to assert that, for many people, justification for the systemic exploitation of both slaves and Native Americans came from the fundamental belief that both groups were inferior to those of European descent.

Lay people, politicians, and scientists all demonstrated what would now be considered an irrational bias against both groups of people. Yet they appeared to be ignorant of this bias. The view that slaves and Native Americans were not worthy of equal treatment seemed to be the *intuitively* correct view. Arguably, this intuitive judgment presented itself as fundamentally as the opposite judgment does to (hopefully) the majority of people today. If it is agreed that the intuitive judgments of many Americans at this time in history were flawed and yet, to them, appeared to be right, it is easy to see how doubt about the reliability of intuitive judgments can creep in.

How does one know when his or her intuitive judgment is correct and when it is colored by some bias/prejudice; especially when both correct and incorrect judgments appear to manifest in the same way (e.g. with same degree of persistence and intensity)? The force of this doubt is amplified by the recognition of just how often intuitions are invoked to make and justify moral choices.

In some cases it is not even necessary to look back through human history to call into question the reliability of intuitions. Even in the span of a single life, the reflective individual might note that there were times when she believed something to be fundamentally (i.e. intuitively) true and yet, after the perspective that time and experience grant, she now rejects the same view.

Criticism from Psychology

Contemporary psychological research on intuitions appears to reinforce the reliability concern introduced above. Studies designed to test basic, and arguably commonly-held, intuitions have yielded interesting results.

Edward Wisniewski discusses a number of such studies in his essay "The Psychology of Intuitions"⁵ These studies, he contends, demonstrate that even strong intuitions can be wrong and that as a result one should be "very cautious about trusting any intuition."⁶ In the studies, subjects are shown to regularly act contrary to a basic intuition.

For example, Wisniewski justifiably argues that most people, of normal cognitive development, prefer less to more pain.⁷ Yet, in an experiment conducted by Kahneman et al study participants routinely chose to repeat a trial in the experiment that involved, quantifiably speaking, more pain for the participant, not less.⁸ This trend, making choices that directly undermined seemingly obviously true intuitions, held across several experiments surveyed by Wisniewski.

⁵ Wisniewski, Edward J. "The Psychology of Intuitions" Rethinking Intuition ed. Michael DePaul and William Ramsey (New York: Rowman and Littlefield, 1998), pgs 45-58.

⁶ Ibid pg. 45

⁷ Ibid pg. 47

⁸ Specifically, subjects were asked to place their hands into a tub of water that was 57.4° F. In one trial, subjects were asked to keep one hand in the water for 60 seconds. Subjects were given a device to record their level of discomfort, operated with the other hand during the immersion. In another trial, subjects were instructed to keep one hand in the same tub for 90 seconds; again using the device to rate their discomfort. However, in the second trial, after the 90 seconds elapsed, subjects kept their hands in the water for an additional 30 seconds as it was warmed to 59.4°F. Though the increase in temperature did positively impact the ratings, subjects still reported some level of discomfort during the warming phase of the longer trial (pg 48). Given the preference of less pain to more pain, one would expect that when subjects were asked which trial they would be willing to repeat, they would choose the first trial; it involved the lowest quantity of discomfort. In reality, 69% of the subjects chose the long trial. At first glance, they chose more pain over less (48).

The full implications of this study, and others, for intuitions remain unclear. A detailed survey and analysis of the experiments highlighted by Wisniewski is beyond the scope of this article.⁹ These points notwithstanding, arguably the studies do show that people *can be* unaware of factors that interfere with the application of their intuitions. Wisniewski states:

*In psychology, there is a growing appreciation of the ubiquity of unconscious influences across all aspects of cognition.*¹⁰

*A number of studies in social psychology suggest that people sometimes explain their behavior or feelings by using their intuitions to decide which factors of the situation caused their behavior. If their intuitions do not suggest plausible causes, then people believe that the reason for their behavior was random or arbitrary. As a result, people sometimes erroneously attribute their behavior to intuitively plausible causes that nevertheless did not influence their behavior, or they ignore intuitively implausible factors that nevertheless did influence their behavior. Thus, people sometimes fail to understand why they do things or feel a particular way.*¹¹

Thus, the doubt is raised again – how does one know when he is under the right sorts of conditions such that he can be confident in the reliability of his intuitions?

It would appear that without a specification of conditions under which intuitions can be trusted, their general use is called into question. In the context of moral deliberation, the doubt can be expressed this way: how does one know that one has made a justifiable and defensible judgment about a particular issue or problem?

If it is true that one is not always aware of influences on one's judgment, then what appears to be an objective, well-formed judgment could, in fact, be nothing more than the result of some local custom and/or a bias of a more ignoble sort. When evaluating a moral theory or principle or when taking a stand on an issue, it is not enough to adopt a position. One must have *good* reason for adopting the position. If the doubts about intuitions wholly undermine them then a source of good reason, regarded as important heretofore, is lost. The question remains, should intuitions play any role in moral deliberations?

Section III: Defending the Reliability of Intuitions

David Sosa is familiar with both of the attacks on intuitive judgments as described above. He notes that intuition, and reason more broadly, has been under attack for some time now and admits the results of recent studies in psychology have appeared to add to the force of this attack.¹² Yet, despite the validity of some of the criticisms, he rejects the notion that all intuitive judgments are unreliable.

Sosa argues that intuitive judgments are comparable to introspective and perceptive judgments (i.e., to judgments about one's own mental states and to judgments about sensory data respectively). Most people are willing to treat both introspection and perception as generally reliable sources of information, of justified knowledge. Yet, it is also the case that under certain conditions, both introspection and perception are predictably misleading.¹³

For example, when driving down a straight stretch of road in the summer, one will sometimes perceive that there is water on the road in the distance.

Even though experience dictates otherwise, the misleading perception remains. Yet, even knowing of such limitations to both reliable introspection and reliable perception, people treat both as valid sources of knowledge. And they should according to Sosa.¹⁴

⁹ The reader is encouraged to refer to Wisniewski's essay for a brief overview of the literature in contemporary psychology dealing with intuitions.

¹⁰ Ibid pg. 54

¹¹ Ibid

¹² Sosa, David "Minimal Intuition" Rethinking Intuition ed. Michael DePaul and William Ramsey (New York: Rowman and Littlefield, 1998), pg 257.

¹³ Ibid pg. 261

¹⁴ Ibid pgs. 265-266

Within a certain range, both faculties accurately track the world; be it one's internal state of being or one's external surroundings.

If it is granted that perception and introspection can still be treated as reliable sources of knowledge, even in light of well-established limitations, why not think the same of intuitions? Sosa admits that a number of studies do raise genuine criticisms of intuitions.

He states:

*We humans are indeed sometimes systematically in error when we apparently intuit while normal, alert, and amply reflective. Our reasoning competence seems flawed not just our performance.*¹⁵

However, just as with introspection and perception, it does not follow that intuitions should be wholly disregarded as a source of reliable information. Such a move is unwarranted and excessive. Again, with respect to perception, Sosa states:

*Perception is systematically misleading in well-known circumstances. Yet we do not dismiss perception just because of that. We do not conclude that one is blind just because one is color blind. We do not dismiss vision altogether simply because it is subject to systematic illusions.*¹⁶

Sosa maintains that intuitions should also be treated as reliable under certain conditions. Intuitive judgments are not any more flawed than introspective or perceptive judgments.¹⁷

The caveat, "under certain conditions", introduces a follow up consideration. If intuitive judgments are to be treated as reliable, it seems imperative to define the conditions under which intuitions are seen as being trustworthy; to establish a range of reliability. Sosa acknowledges that such a project would be helpful with regard to our understanding and use of intuitions.

But currently, there is no unified theory to explain intuitions, their source, and range of reliability. It might even be the case that no such theory is possible because the instances under which intuitions are reliable (or unreliable) are too diverse.¹⁸ Here again, however, the situation is no different for introspection and perception. Sosa agrees that a theory specifying a range of reliability would be nice, but does not think that such a theory is required in order to treat judgments from all three faculties as being reliable.¹⁹

Sosa concludes that people can and do confidently and accurately label tomatoes as being "red" even lacking scientifically verified theories of vision. One can know one *is* a reliable perceiver, introspector or intuiter even if one does not know *how* this is the case.²⁰

Section IV: A Qualified Place for Intuitions

The debate about the reliability of intuitions and hence their use in all types of inquiry, including ethics, is by no means settled. The views presented above constitute only a brief introduction to an interesting discussion with important implications. What provisional conclusions might be drawn at this point then?

It is argued that intuitions do have a legitimate role to play in reasoning about moral issues. It does seem that throwing intuitions out across-the-board, based on the doubts raised by psychological studies, would be premature and thus too drastic. Moreover, the intuitions that have led to abhorrent practices, such as slavery, might be best viewed as aberrations in human history and reasoning.

Still, using intuitions without caveat or caution also seems ill advised. There are instances where justification for a moral position should not rest solely on an intuitive judgment. Of course, the challenge is *knowing* when caution *is* advised.

¹⁵ Ibid pg. 261

¹⁶ Ibid pg. 265

¹⁷ Ibid pg. 268

¹⁸ Ibid pgs. 266-267

¹⁹ Ibid pg. 267

²⁰ Ibid pgs. 266-267

It might be the case that a fully justified theory about intuitions, one in which a reliability range can be defined, is beyond human ken. Nevertheless, specifying some initial, simple conditions under which intuitions should either be supplemented or even disregarded does not seem like an exercise in futility. This is true especially if, as Sosa contends, one can at least be confident that one is a reliable intuiter.

Here are some possible conditions:

1. If a person is heavily emotionally invested in a particular conclusion or outcome of a debate, then that person should approach his intuition with caution and should see if other, non-intuitive, reasons support the conclusion/outcome.²¹
2. Intuitive judgments about seemingly basic ideas should be trusted over intuitions about complex ideas. For example, the claim that it is wrong, barring exceptional circumstances, to take an innocent life is often treated as basic and simple.

However, defining what counts as a person in the morally significant sense is more complicated, as seen in the abortion and embryonic stem cell debates. A person making a judgment about this latter, more complex issue might be influenced, consciously or otherwise, by other less justifiable factors (e.g. political motivations, personal bias, etc.). These outside influences may more likely occur when considering complicated ideas.

3. If one intuitive judgment contradicts another, both intuitive judgments should be examined carefully. In situations where the intuitions did not arise simultaneously, preference should not automatically be given to the pre-existing intuition.²²

*The three conditions above are neither exhaustive
nor definitive.*

They should be treated as reasoning rules-of-thumb.

*Still, they can be helpful in defining a rough range of reliability
for intuitive judgments.*

²¹ Note: to detect such a bias, one might ask oneself what would happen if everyone came to the same conclusion via the same route.

²² Thanks to Brian Casas for his input on conditions one and three.

Tests for Evaluating Actions

(Suggested by Michael Davis, Carl Skooglund, Jimmy Smith & Patricia Harper)

Actions can also be evaluated using the following tests:

Harms Test



Do the benefits outweigh the harms, short term and long term?

Reversibility Test



Would I think this was a good choice if I traded places?

Colleague Test



What would my professional colleagues say?

Legality Test



Would my choice violate a law or policy of my employer?

Publicity Test



How would my choice look on the front page of tomorrow's newspaper?

Common Practice Test



What if everyone behaved this way?

Wise Relative Test



What would my wise old aunt or uncle do? and/or
Would I want them to know what I'm doing?

The Hiding Test



Do I want people to know what I'm doing?

The Self-Respect Test



How will I feel about myself after making this choice?

Something to Consider: These tests promote decisions based on how we would “feel” about what we do, or if someone would know, or if we would be caught.

However, the best decision is to “**Do the right thing because it’s the right thing to do**” rather than out of fear of consequences.